



U.S. Department
of Transportation

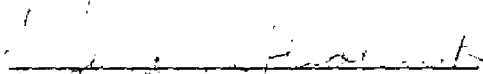
Research and
Special Programs
Administration

400 Seventh Street, S.W.
Washington, D.C. 20590

DOT-E 8264 (PTE)
FIRST REVISION August 24, 1981

In accordance with 49 CFR 107.111 of the Department of Transportation (DOT) Hazardous Materials Regulations the party(ies) listed below is granted the status of party to DOT-E 8264. The expiration date of the exemption for the party(ies) is June 30, 1996.

This party status applies to the party(ies) listed below based on the application(s) submitted in accordance with 49 CFR 107.111 and the public proceeding thereon. All terms of the exemption remain unchanged. This authorization forms part of the exemption and must be attached to it.


Alan I. Roberts
Associate Administrator
for Hazardous Materials Safety

FEB 15 1995

(DATE)

Dist: FHWA FRA

EXEMPTION HOLDER

APPLICATION DATE

Alliant Techsystems, Inc.
New Brighton, MN

December 28, 1994

ADVISORY

IF YOU ARE A HOLDER OF AN EXEMPTION THAT AUTHORIZES THE USE OF A PACKAGING WITH A MAXIMUM CAPACITY LESS THAN 450 L (119 GALLONS) OR A MAXIMUM NET MASS LESS THAN 400 KG (882 POUNDS), PLEASE BE ADVISED THAT YOUR EXEMPTION MAY NOT BE RENEWED BEYOND SEPTEMBER 30, 1996. IN ADDITION, NO NEW CONSTRUCTION OF PACKAGINGS WHICH FALL WITHIN THE NON-BULK CAPACITIES LISTED ABOVE ARE AUTHORIZED AFTER SEPTEMBER 30, 1994. THIS IS CONSISTENT WITH THE IMPLEMENTATION OF THE NEW PACKAGING REQUIREMENTS ADOPTED UNDER DOCKET HM-181. ANY APPLICATION SUBMITTED TO THIS OFFICE TO RENEW AN EXEMPTION BEYOND THE SEPTEMBER 30, 1996 DATE WILL BE DENIED UNLESS THE APPLICATION CONTAINS SUPPORTING INFORMATION TO JUSTIFY THE CONTINUATION OF THE EXEMPTION.



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400 Seventh Street S.W.
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DOT-E 8264 (EXTENSION)
FIRST REVISION August 24, 1981

In accordance with 49 CFR 107.105 of the Department of Transportation (DOT) Hazardous Materials Regulations DOT-E 8264 is hereby extended for the party(ies) listed below by changing the expiration date in paragraph 10 to June 30, 1996. This change is effective from the issue date of this extension. All other terms of the exemption remain unchanged.

This extension applies only to party(ies) listed below based on the application(s) received in accordance with 49 CFR 107.105. This extension constitutes a necessary part of this exemption and must be attached to it.

Alan I. Roberts
Associate Administrator
for Hazardous Materials Safety

3. 1994
(DATE)

Dist: FHWA FRA

EXEMPTION HOLDER

APPLICATION DATE

Hercules, Inc.
Wilmington, DE

June 7, 1994

ADVISORY

IF YOU ARE A HOLDER OF AN EXEMPTION THAT AUTHORIZES THE USE OF A PACKAGING WITH A MAXIMUM CAPACITY LESS THAN 450 L (119 GALLONS), OR A MAXIMUM NET MASS LESS THAN 400 KG (882 POUNDS), PLEASE BE ADVISED THAT YOUR EXEMPTION MAY NOT BE RENEWED BEYOND SEPTEMBER 30, 1996. IN ADDITION, NO NEW CONSTRUCTION OF PACKAGINGS WHICH FALL WITHIN THE NON-BULK CAPACITIES LISTED ABOVE ARE AUTHORIZED AFTER SEPTEMBER 30, 1994. THIS IS CONSISTENT WITH THE IMPLEMENTATION OF THE NEW PACKAGING REQUIREMENTS ADOPTED UNDER DOCKET HM-181. ANY APPLICATION SUBMITTED TO THIS OFFICE TO RENEW AN EXEMPTION BEYOND THE SEPTEMBER 30, 1996 DATE WILL BE DENIED UNLESS THE APPLICATION CONTAINS SUPPORTING INFORMATION TO JUSTIFY THE CONTINUATION OF THE EXEMPTION.



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DOT-E 8264
(FIRST REVISION)

1. Hercules Incorporated, Wilmington, Delaware, is hereby granted an exemption from those provisions of this Department's Hazardous Materials Regulations specified in paragraph 5 below to offer packages prescribed herein of smokeless powders for transportation in commerce subject to the limitations and special requirements specified herein. This exemption authorizes shipment of certain solid propellant explosives (Class B explosives) and smokeless powders for small arms (flammable solids) in non-DOT specification fiber cans or tubes packed in fiberboard boxes, and provides no relief from any regulation other than as specifically stated.

2. BASIS. This exemption is based on Hercules Incorporated's application dated August 7, 1979 and May 14, 1981, submitted in accordance with 49 CFR 107.103 and the public proceeding thereon.

3. HAZARDOUS MATERIALS (Descriptor and class). Hercules powders described as solid propellant explosives and classed as Class B explosives. Also, Hercules powders described as smokeless powder for small arms and classed as flammable solids.

4. PROPER SHIPPING NAME (49 CFR 172.101). "Propellant explosive, solid" for powders classed as Class B explosives or "Smokeless powder for small arms" for powders classed as flammable solids, as appropriate.

5. REGULATION AFFECTED. 49 CFR 173.93.

6. MODES OF TRANSPORTATION AUTHORIZED. Motor vehicle and rail freight.

7. SAFETY CONTROL MEASURES. Packaging prescribed for Hercules powders identified by family names as Bullseye, Red Dot, Green Dot, Herco, 2400, Hi-Temp., Blue Dot, Unique, and HES 8710.1A is an inside fiber can (3-9/16" in diameter by 6-1/2" in length or 3-3/8" in diameter by 7-3/4" in length) with a metal top and bottom. Each can shall have a 1-1/2" opening in the top with a press fit plastic disc. Each can shall contain one (1) pound of powder. Not more than twenty (20) fiber cans may be packed in a DOT Specification 12B30 fiberboard box. Each box must be closed by fiberglass reinforced tape or with two plastic bands.

Packaging prescribed for Hercules powders identified by family names as Bullseye, Red Dot, Green Dot, Herco, 2400, Blue Dot, Unique, and Reloader II is an inside fiber tube (6" in diameter by 11" in length) with a metal top and bottom. Each fiber tube shall have a 1-1/2" opening in the top fitted with a plastic pour spout type closure. Each fiber tube shall contain four (4) or five (5) pounds of powder, depending on the density of the powder. Not more than six (6) fiber tubes may be packed in a DOT Specification 12B40 fiberboard box. Each box must be closed as described above.

Packaging prescribed for Hercules powders identified by family names as Bullseye, Red Dot, Green Dot, Herco, 2400, Blue Dot, and Unique is a DOT Specification 21C60 fiber drum. Each fiber drum shall contain eight (8) pounds of powder. Not more than four (4) drums may be packed in a fiberboard box constructed to Uniform Freight Classification Standards. The fiberboard box shall have a bursting strength of at least 200 pounds per square inch.

Intermingling of inside packaging and less than case load lot shipments are authorized, provided: 1. The inside packaging is the same size. 2. Any empty cell in the outside packaging caused by the removal of inside packaging for less than a case load lot shipment must be completely filled with an assembly of corrugated fiberboard equaling the size of the vacant cell and secured with tape in the cell. Inside packaging must fit snugly in the outside packaging. 3. The filled inside packaging must not be altered by adding, removing, or intermixing of powders.

8. SPECIAL PROVISIONS.

a. Persons who receive packages covered by this exemption may reship them pursuant to the provisions of 49 CFR 173.22a.

b. Shipments of smokeless powder for small arms must not exceed 100 pounds net weight in one motor vehicle.

9. REPORTING REQUIREMENTS. Any incident involving loss of contents of the package must be reported to the Office of Hazardous Materials Regulation as soon as practicable.

10. EXPIRATION DATE. March 15, 1982.

Issued at Washington, D.C.:



Alan I. Roberts
Associate Director for
Hazardous Materials Regulation
Materials Transportation Bureau

AUG 24 1981

(DATE)

Address all inquiries to: Associate Director for Hazardous Materials Regulation, Materials Transportation Bureau, Research and Special Programs Administration, U.S. Department of Transportation, Washington, D.C., 20590. Attention: Exemptions Branch.

Dist: FHWA, FRA